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WORK & BUSINESS VISA ADMINISTRATIVE REVIEW



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WORK & BUSINESS VISA ADMINISTRATIVE REVIEW

If your UK work or business visa application has been refused, your leave to enter or remain for work or business purposes has been cancelled at the UK border, or you are not satisfied with the period of stay or work conditions you have been granted, our administrative review lawyers can advise on the merits of applying for administrative review and, if appropriate, challenge the Home Office decision by way of an application for administrative review.

On this page we look at who has the right to apply for administrative review, grounds for administrative review (the meaning of a case-working error), how to apply for administrative review, time limits for applying for administrative review, administrative review processing times and possible outcomes following an application for administrative review.

What is Administrative Review?

Administrative Review is a process whereby an applicant can challenge a Home Office immigration decision on the ground that it is wrong because it contains one or more case working errors.

Not all Home Office decisions can be challenged by way of Administrative Review. Administrative review is only available when an eligible decision has been made.

The only ground for administrative review is that the Home Office has made a case working error, as defined in the Immigration Rules.

Following an application for administrative review, the Home Office will review its decision and, if it agrees that a relevant case working error has been made, correct it.

To discuss your work or business visa administrative review application with one of our business immigration barristers, contact our administrative review lawyers on 0203 617 9173 or complete our enquiry form below.

Who Has the Right to Apply for Administrative Review?

Not all UK work and business visa decisions can be challenged by way of administrative review. Administrative review is only available when an eligible work or business visa decision has been made.

The following is a non-exhaustive list of the main work and business immigration applications which, if refused by the Home Office, will generate an eligible decision which can be challenged by way of an application for administrative review:

- **Tier 1 Investor** (<https://immigrationbarrister.co.uk/personal-immigration/investor-visas/tier-1-investor-visa-extension/>) (main applicant or dependant);
- **Tier 1 Entrepreneur** (<https://immigrationbarrister.co.uk/personal-immigration/uk-entrepreneur-visa/tier-1-entrepreneur-visa-extension/>) (main applicant or dependant);
- **Skilled Worker** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/>) (main applicant or dependant);
- **Scale-up Worker** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/scale-up-visa/>) (main applicant or dependant);
- **High Potential Individual** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/high-potential-individual-visa/>) (main applicant or dependant);
- **International Sportsperson** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/international-sportsperson-visa/>) (main applicant or dependant);
- **Seasonal Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/seasonal-worker-visa/>);
- **Youth Mobility Scheme** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/youth-mobility-scheme-visa/>);
- **Religious Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/temporary-work-religious-worker-visa/>) (main applicant or dependant);
- **Charity Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/charity-worker-visa/>) (main applicant or dependant);
- **Creative Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/temporary-work-creative-worker-visa/>) (main applicant or dependant);
- **International Agreement Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/temporary-work-international-agreement-visa/>) (main applicant or dependant);
- **Government Authorised Exchange Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/government-authorised-exchange-worker-visa/>) (main applicant or dependant);

- visas/temporary-work-government-authorised-exchange-visa/) (main applicant or dependant); <https://www.google.co.uk>
- (2) <https://immigrationbarrister.co.uk/personal-immigration/business-visas/start-up-visa/> (main applicant or dependant);
- Innovator (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-visa/>) (main applicant or dependant);
 - Representative of an Overseas Business (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/sole-representative-of-an-overseas-business-visa/>) (main applicant or dependant);
 - Global Talent (<https://immigrationbarrister.co.uk/personal-immigration/global-talent-visas/global-talent-visa/>) (main applicant or dependant);
 - Graduate (<https://immigrationbarrister.co.uk/personal-immigration/student-and-graduate-visas/graduate-visa/>) (main applicant or dependant);
 - UK Ancestry (<https://immigrationbarrister.co.uk/business-immigration/other-work-visas/uk-ancestry-visa/>) (main applicant or dependant);
 - Overseas Domestic Worker (<https://immigrationbarrister.co.uk/personal-immigration/other-work-visas/overseas-domestic-worker-visa/>);
 - Hong Kong BN(O) Status Holder (<https://immigrationbarrister.co.uk/personal-immigration/hong-kong-bno-visa/hong-kong-bno-visa/>), dependent partner, BN(O) Household Child, BN(O) Household Member (<https://immigrationbarrister.co.uk/personal-immigration/hong-kong-bno-visa/hong-kong-bno-household-member-visa/>) or Adult Dependent Relative of a Hong Kong BN(O);
 - Global Business Mobility – Senior or Specialist Worker (<https://immigrationbarrister.co.uk/personal-immigration/business-mobility-visas/global-business-mobility-visa-senior-or-specialist-worker/>);
 - Global Business Mobility – Graduate Trainee (<https://immigrationbarrister.co.uk/personal-immigration/business-mobility-visas/global-business-mobility-visa-graduate-trainee/>);
 - Global Business Mobility – UK Expansion Worker (<https://immigrationbarrister.co.uk/personal-immigration/global-business-mobility-visas/uk-expansion-worker-visa/>);
 - Global Business Mobility – Secondment Worker (<https://immigrationbarrister.co.uk/personal-immigration/global-business-mobility-visas/secondment-worker-visa/>);
 - Global Business Mobility – Service Supplier (<https://immigrationbarrister.co.uk/personal-immigration/global-business-mobility-visas/service-supplier-visa/>).

If you have made an application under any of the above business immigration routes and your application has been approved, but you believe that an error has been made in relation to the period or conditions of leave granted, this can also be challenged by administrative review.

Your decision letter should state if you can apply for administrative review, but if you are not sure whether your Home Office decision is eligible to be challenged by <http://www.google.co.uk> immigration barristers administrative review then you may wish to contact our administrative review lawyers in London for further advice.

Grounds for Administrative Review

The only ground for administrative review is that the Home Office has made a permitted case working error, as defined in the Immigration Rules.

What Is a Case Working Error?

Administrative review will only consider the following claimed case working errors:

- The Home Office's decision to refuse or cancel entry clearance or leave to enter or remain based on alleged false representations, false documents or information, failure to disclose material facts or previous breach of conditions was incorrect;
- The Home Office's decision to refuse an application on the basis that the date of application was beyond a time limit in the Immigration Rules was incorrect;
- The Home Office's decision not to request specified documents (for example, under the points-based system evidential flexibility rules) was incorrect;
- The Home Office decision maker applied the wrong Immigration Rules or otherwise incorrectly applied the Immigration Rules (for example, by failing to consider some or all of the evidence submitted properly);
- The Home Office decision maker failed to apply relevant published policy and guidance in relation to the application (for example, when assessing the credibility or genuineness of the application);
- The Home Office decision maker made an error in calculating the correct period or conditions of immigration leave.

It is possible to apply for administrative review either because the alleged error could have made a difference to the decision or because the alleged error could unfairly impact on a future application (i.e. because a future application may now be refused on general suitability grounds).

How to Apply for Work or Business Visa Administrative Review

Applications for administrative review must generally be submitted online, in accordance with the requirements of the Immigration Rules.

The administrative review application fee must be paid (unless an exemption applies) and all mandatory sections of the online application form must be completed. Documents specified as mandatory on the online application or in related guidance must be submitted.

If the administrative review application is incomplete, it will be rejected. You may wish to seek legal advice from a specialist administrative review lawyer before applying. <https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>

The Home Office will not consider any new evidence or information, unless it impacts upon the decision under review and it:

- Proves that you did not practice deception in the application under review, where this was a ground for refusal;
- Proves that there was no change of circumstances, if leave was cancelled at the UK border for this reason;
- Proves that the application was made within a time limit specified in the Immigration Rules, when an alleged failure to apply in-time provided a basis for refusal; or
- Should have been requested by the Home Office when considering points-based system evidential flexibility.

Time limit for Applying for Administrative Review

If you are in the UK and applied for permission to stay from within the UK, you will have 14 calendar days (or 7 days if detained) from the date when you received your decision notice or biometric residence permit to apply for administrative review.

If you are outside the UK and applied from outside the UK, you will need to apply for administrative review within 28 days of receiving the decision that you wish to challenge.

Administrative Review Processing Time

Administrative review applications are currently taking at least 6 months to be processed by the Home Office.

Administrative Review Fees

The Home Office charges a fee of £80 for an administrative review application. There is no additional fee for reviewing the decision(s) in relation to any dependent(s) who were properly included in the original application.

Certain applicants may be exempt from paying the administrative review fee, whilst others may qualify for a fee waiver.

To discuss your work or business visa administrative review application with one of our business immigration barristers, contact our administrative review lawyers on 0203 617 9173 or complete our enquiry form below.

Immigration Status After Applying for Administrative Review

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If you made an in time application for a work or business visa, and applied for administrative review within the time limit for administrative review of the decision, you will continue to have immigration leave until you are served with notice of decision of the administrative review.

If you are an overstayer at the point of making a valid administrative review application, the Home Office will not seek to remove you from the United Kingdom while you have an administrative review pending.

Fresh Applications and Administrative Review

If you submit a new application for entry clearance, leave to enter or leave to remain on a work or business immigration route while an application for administrative review is pending, your administrative review application will be treated as withdrawn.

If you submit a fresh application for entry clearance, leave to enter or leave to remain on a work or business immigration route and then apply for administrative review of a previous decision, your administrative review application will be refused.

Possible Outcomes of Administrative Review

There are 4 possible outcomes following an application for administrative review:

- The Home Office agrees that the decision being challenged contains a casework error and the decision is withdrawn;
- The Home Office does not agree that the decision being challenged contains a casework error, the decision remains in force and all reasons given for the decision are maintained;
- The Home Office does not agree that the decision under challenge contains a casework error, the decision remains in force, but one or more reasons given for the decision are withdrawn;
- The Home Office does not agree that the decision under challenge contains a casework error, the decision remains in force, but with different or additional reasons to those given in the decision under review.

What Will Happen if My Administrative Review Is Successful?

If the Home Office finds that the decision of the original decision maker contained a casework error, then it will go on to consider whether correcting the casework error would change the outcome of the original decision.

If the Home Office is satisfied that the error in the original decision changed the decision, it will withdraw the decision and refund your administrative review fee.

If the Home Office decides to withdraw an incorrect decision then they will normally correct the error and issue a new decision. If the new decision is that the application should have been granted, you will be granted leave that is appropriate to the original application.

Your leave will start from the date of the withdrawal of the incorrect previous decision. If your administrative review challenged the period of leave granted or conditions of leave, you will be issued with a new BRP.

What Will Happen if My Administrative Review Is Not Successful?

If the Home Office concludes that the decision made on your work or business visa or immigration application (or the period of leave granted or conditions imposed) was correct then you will receive a notice explaining that the decision under challenge has been maintained.

There is no right of appeal against an administrative review decision and it is not possible to request a second review, unless the result of the first review found new reasons for refusal. In this situation you will be entitled to a further administrative review in relation to the new grounds. Your decision letter should tell you whether you can apply for a second review.

It may be possible to seek judicial review of the outcome of the administrative review. You may wish to seek legal advice from a specialist administrative review lawyer.

How Our Immigration Barristers Can Help

Our immigration barristers work directly with individuals and businesses, within the UK and overseas, to prepare high quality applications for administrative review of Home Office decisions.

If you are looking to apply for administrative review of a decision to refuse your UK work or business visa or immigration application, or a decision to cancel your leave to enter or remain at the UK border, our immigration barristers combine specialist legal advice and advocacy, with a professional and supportive approach.

Whether you require advice on the merits of applying for administrative review or help with preparing and lodging an administrative review application, our expert administrative review lawyers work directly with our clients, drawing on years of experience of preparing and presenting successful administrative review applications.

We recognise that every client's circumstances are unique and our administrative review lawyers provide tailored immigration law solutions designed to meet individual needs.

WE CAN ALSO ASSIST WITH

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WHAT CAN WE HELP YOU WITH?

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Re-inspection of the administrative review process, published in July 2017

(<https://immigrationbarrister.co.uk/re-inspection-administrative-review-process-published-july-2017/>)

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The Independent Chief Inspector of Borders and Immigration (ICIBI) report on a re-inspection of the administrative review process, published in July 2017 was published on 13 July 2017. Pursuant to section...

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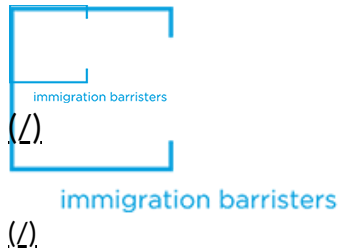
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